

Court No. - 1

Case :- WRIT - C No. - 26609 of 2019

Petitioner :- Fakruddin Khan

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Shyam Babu Vaish

Counsel for Respondent :- C.S.C., Rajesh Kumar Sachan

Hon'ble Ramesh Sinha,J.

Hon'ble Ajit Kumar,J.

Heard Sri Shyam Babu Vaish, learned counsel for the petitioner and Sri Rajesh Kumar Sachan, learned counsel for respondent Nos.2 and 3.

Learned counsel for the petitioner has come up before this Court disputing the bill which is in question.

Sri Rajesh Kumar Sachan, learned counsel appearing for the Electricity Department has raised preliminary objection that the petitioner has alternative remedy to file representation before the appropriate authority under Clause 6.5 of the U.P. Electricity Supply Code, 2005 and against the order passed thereunder, the petitioner has remedy to approach UPERC (Consumer Grievance Redressal Forum & Electricity Ombudsman) Regulations, 2007.

In view of the above, we dispose of the writ petition with liberty to the petitioner to approach the forum and we further direct that in the event he applies for under Clause 6.5 of the U.P. Electricity Supply Code, 2005 against the disputed bill within two weeks from today along with certified copy of this order the same shall be considered in accordance with law and shall be disposed of within a further period of six weeks.

Order Date :- 13.8.2019

Sanjeev

(Ajit Kumar,J.) (Ramesh Sinha,J.)